

SENATE No. 2309

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to solar-powered mobility networks.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>2/4/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>10/23/2025</i>

SENATE No. 2309

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 2309) of Patrick M. O'Connor and Bradley H. Jones, Jr. for legislation relative to solar-powered mobility networks. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2159 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to solar-powered mobility networks.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The Executive Office of Energy and Environmental Affairs shall regulate
2 solar-powered mobility networks to encourage the shift from an oil-powered to sustainable
3 economy. If no commercial enterprise are approved to build such networks within 6 months, the
4 executive office shall conduct one or more pilot networks. Commercial and pilot networks shall
5 be granted non exclusive access to rights-of-way if the networks:

6 (i) are privately-funded construction;

7 (ii) are privately operated without government subsidies;

8 (iii) exceed 120 passenger miles per gallon (5 times the efficiency on existing roads) or
9 equivalent energy efficiency;

(iv) exceed safety performance of transportation modes already approved for use; and

(v) that are above ground gather more than 2 megawatt-hours of renewable energy per network mile per typical day.

SECTION 2. The executive office of energy and environmental affairs shall promulgate regulations for solar and renewable energy mobility networks based on the following criteria:

(i) system design, fabrication, installation, safety, insurance and inspection practices consistent with the American Society for Testing and Materials International Committee F24 on Amusement Rides and Devices;

(ii) environmental approvals shall be granted to networks exceeding 5 times the efficiency of existing roads as measured in energy per passenger-mile, and

(iii) networks access may be rejected in writing for other reasons; and

(iv) provided, taxes and fees assessed on solar and renewable energy mobility network providers, passengers and cargo shall be limited to 5 percent of the gross revenues and shall be paid to the aggregate rights-of-way holders by the solar or renewable energy mobility network provider.